
2:00 PM LINE 5

24-CIV-04529

CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X. YOUNG LAI
JONATHAN E. MADISON

MOTION TO COMPEL DEFENDANT YANG MIN YANG TO PROVIDE RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES (SET TWO, NO. 17-26); REQUEST FOR IMPOSING MONETARY SANCTIONS AGAINST DEFENDANT AND HIS ATTORNEY IN THE AMOUNT OF \$3,000.00.

TENTATIVE RULING:

For the reasons stated below, plaintiff Chunyu Tan's "Motion to Compel Defendant Yang Min Yang to Provide Responses to Plaintiff's Special Interrogatories (Set Two, No. 17-26)" and "Request for Imposing Monetary Sanctions against Defendant and His Attorney in the Amount of \$3,000," filed March 13, 2026, is **GRANTED in part**. (Code Civ. Proc. § 2023.010, et. seq. [discovery misuse].)

A. Service of the Motion and Defendant's Response

Because the court had questions about whether this Motion was properly served, counsel were ordered to appear on August 5, 2026 and the court permitted defendant's counsel to file a responsive brief. He submitted an omnibus opposition to the four motions to compel as well as a declaration on August 20, 2026. No discovery responses were submitted along with defendant's opposition. Instead, defendant's counsel has asked for additional time to respond. He argues that his client's injuries in December 2024 and March 2025 should excuse the failure to respond. Defendant's counsel offers no explanation for any further delay. (See Declaration of Jonathan E. Madison in Opp. to Pltfs.' Requests for Monetary Sanctions Against Counsel of Record, ¶¶ 4-13.) However, defense counsel argues against the court imposing sanctions against counsel of record on the ground that he "did not advise Defendant Yang Min Yang to engage in any of the conduct for which Plaintiff seeks sanctions." (*Id.*, ¶ 20.)

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

Plaintiff asserts that defendant has not supplied any responses to plaintiff's Special Interrogatories, Set No. Two, Nos. 17-26, which were served on December 14, 2025. (See Separate Statement iso Motion.) Defendant's only explanation for his failure to respond to this discovery is that he was injured in December 2024 and again in March 2025. With this motion, plaintiff seeks to compel responses to plaintiff's Special Interrogatories (Set Two), Nos. 17-26, as well as monetary sanctions.

C. Law Governing Sanctions for Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey and order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).) The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

D. Monetary Sanctions

Plaintiff seeks \$3,000 in monetary sanctions against defendant Yang Min Yang and his counsel for attorney's fees incurred with this motion. (March 13, 2026 Lai Decl., ¶ 14(d))

[seeking compensation for six hours of attorney time at \$500/hour].) This request is **GRANTED in part**. Defendant's counsel asserts that he did not advise his client to violate his discovery obligations and the court accepts that representation.

The court credits plaintiff for four hours of attorney time at \$500/hour (4 x \$500 = \$2,000). The court is reducing the requested time because the opposition was only filed on August 20, 2026, did not require a response, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang is **GRANTED** in the amount of \$2,000, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 6

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YANG MIN YANG

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MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S FORM INTERROGATORIES (SET ONE, NO. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, AND 50.6)

TENTATIVE RULING:

Plaintiff Chunyu Tan's motion for terminating, issue, evidence, and monetary sanctions of \$4,000 regarding Defendant Yang Min Yang's responses to Plaintiff's Form Interrogatories, Set One, Nos. 2.2, 2.6, 2.7, 15.1, 50.1, 50.3, and 50.6., filed March 13, 2026, is **GRANTED in part**.

E. Service of the Motion and Defendant's Response

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